English

YouTube removes July 12 City Council video due to content of public comments

Summary of the issue

The video of the July 12 regular meeting of the Bellingham City Council was removed from YouTube July 15, 2021 for violations of YouTube's terms of service. (See YouTube's COVID misinformation policy (https://support.google.com/youtube/answer/9891785?hl=en)). The violation occurred as part of testimony shared by members of the public during the public comment period of the July 12 meeting.

YouTube typically is the hosting service for all City Council and other City video content. Please watch this page for updates. Full overview lower on this page, including communications received from YouTube.

7/15/21:

- We have created a temporary method for viewing the July 12 meeting that does not rely on YouTube (See July 12 Regular Meeting Action Summary (https://meetings.cob.org/Meetings/ViewMeeting?id=2436&doctype=3)).
- We are working to resolve this situation to ensure continued on-demand viewing of City Council meetings.

7/16/21:

- Videos of eight additional regular Council meetings, which contain some of the same public comment statements that YouTube flags as "medical misinformation," were moved by the City from YouTube to an alternative platform to prevent further community guidelines "strikes" (https://support.google.com/youtube/answer/2802032) by YouTube. These videos remain accessible via meetings.cob.org (https://meetings.cob.org/) through an alternative platform.

7/23/21:

- Bellingham City Council President Hannah Stone makes the following statement:

"Public comment is an instrumental part of an effective democracy, though not required by law. Furthermore, the First Amendment protects freedom of speech, and these protections extend to the Council's public comment period. Accordingly, if Council chooses to hold public comment periods, the Council can only implement viewpoint neutral restrictions on public comment.

In response to video coverage of the July 12th City Council Regular Meeting being pulled from YouTube, I made a difficult decision to suspend the live public comment period. This decision was made on Wednesday in advance of the deadline for final preparation of the agenda packet for the upcoming meeting on July 26th. Rest assured that I did not make this decision lightly.

This suspension is not a solution but rather a pause to preserve uninterrupted public access to meetings. My aim is to support new opportunities for improved community engagement and increased transparency. That goal will be the focus of discussions and planning in the weeks and months ahead.

Please note that the City has not received notice from YouTube to indicate that the July 12th video has been reinstated or assurance that the matter is resolved. The City was issued a warning from YouTube when the video was pulled. The City appealed this decision, and the appeal was denied. It is my understanding that this deletion and warning is the first step in YouTube's "strike" process and additional strikes could result in the deletion of the City's YouTube channel. Furthermore, each strike comes with intermediate penalties that could cause delays to the City's other non-Council video work.

In the interim, public comment can still be presented to the Council by mail (210 Lottie Street, Bellingham, WA 98225), online at Engage Bellingham (https://engagebellingham.org/council-public-comment) , or by telephone (360-778-8200)."

7/26/21:

Background information about YouTube-related issues, including purpose of the suspension of public comment period for the July 26 regular evening meeting, is presented at the July 26 Bellingham City Council Committee of the Whole during Old/New Business. Video of this presentation is available at meetings.cob.org (https://meetings.cob.org/) at 1 hour, 54 minutes in to the Committee of the Whole video recording (https://youtu.be/TfUjJWnapSY) .

Some background about the City's use of YouTube:

- The City began using YouTube to provide video content to the community in 2006.
- YouTube is the most popular video hosting website in the world, and therefore its content is easily accessible for the public. YouTube provides features to support quality playback on a variety of device types, and also supports captioning.
- The City has taken advantage of YouTube's enhanced features over the years. We began livestreaming City Council meetings in 2014 so that the public could view Council meetings as they were occurring. In 2014, we also improved the meeting agenda system so that meeting agendas, materials, and video could all be accessed together. In 2018, when that system was upgraded, the video hosting began utilizing YouTube due to the aforementioned quality and accessibility features.

Additional updates:

- After an initial warning was received, and an appeal denied, City meeting videos containing potential YouTube "medical misinformation" policy violations were moved to an alternate platform, in order to preserve access to meeting content while not risking our repository of YouTube content and history. Those meeting videos no longer provide the integrated experience that links specific video segments to agenda item topics and materials.
- The situation the City is facing today is based on a unique policy circumstance related to a global pandemic that we did not foresee and could not have foreseen in our fifteen years of using YouTube. Making a change to alternate platforms creates cost, quality, and time impacts and can't be done at a moment's notice.
- Thus far we have no notification that an exception will be made by YouTube to accommodate public testimony portions of City Council meetings, despite local media reports. The City has received no communications from YouTube other than the notices pasted below this article. The City has reached out to YouTube for clarification.
- We are not alone in these circumstances. Many public agencies across the country use YouTube in the same way as the City and are now grappling with the same challenges.
- Council President Hannah Stone will be bringing this topic up for discussion during the Monday, July 26, Bellingham City Council Committee of the Whole meeting under old/new business.

8/2/2021:

The Bellingham City Council held a work session to discuss YouTube and related public comment period issues. See the August 2, 2021, Committee of the Whole meeting video (YouTube discussion at approximately 1 hour, seven minutes) (https://meetings.cob.org/Meetings/ViewMeeting?id=2475&doctype=1) for more information.

8/30/2021:

An update was provided to the City Council about the City's communications with YouTube. We have made contact with an area YouTube representative. While there is no guarantee future videos won't attract potential "medical misinformation" policy violations or that we will not receive further warnings or strikes, we have some greater reassurance that impacts will be avoided, as follows:

- YouTube has lifted the content removal decision from the July 12th City Council meeting video.

- YouTube is attentive to its "educational, documentary, scientific or artistic content" policy, which gives some allowances for public comment at public meetings.
- The City now has a point of contact with whom to connect if additional issues arise.

In light of this, our concerns are reduced regarding use of city's YouTube channels and we plan to proceed as we would have prior to receiving the warning on the July meeting. The Council update can be found during the August 30 Committee of the Whole meeting, at meetings.cob.org (https://meetings.cob.org/)

Overview

The City of Bellingham has a long-standing commitment to transparency and open government and City Council meeting video coverage is an important part of meeting that commitment. We have provided gavel-to-gavel video coverage of Bellingham City Council meetings for more than 20 years. City Council video coverage is typically available on BTV (https://cob.org/services/education/btv) (live and rebroadcast on Comcast cable channel 321 (HD) and 10 (SD)) and YouTube.

The City uses YouTube as the host service for most City video distribution, including City Council meeting videos. On July 15, 2021, video coverage of the July 12 regular meeting of the Bellingham City Council was removed by YouTube.

YouTube has in several instances flagged and removed from its site public meeting content that it deems "medical misinformation," which violates its terms of service. (See YouTube's COVID misinformation policy (https://support.google.com/youtube/answer/9891785?hl=en)) YouTube only allows a limited number of violations (or "strikes") before a user's page is deleted entirely.

We are aware that YouTube also has taken action recently on Whatcom County Council videos containing "medical misinformation" as well as on other public meeting videos in other communities outside of our area.

We are exploring our options for ensuring continued on-demand viewing of Council meeting videos.

We understand that YouTube is a private company within its rights to enforce its policies. We share concerns about misinformation and the grave impacts it has on communities. The City Council is dutybound, however, to allow all viewpoints during public comment periods with no interference other than setting time limits and cutting off and "bleeping" those who use vulgarities, as required by the FCC whose rules apply to BTV broadcasts.

We regret the inconvenience this situation causes. A temporary method is in place for viewing the July 12 meeting and other meetings that YouTube could determine violate "medical misinformation policies" (See July 12 Regular Meeting Action Summary (https://meetings.cob.org/Meetings/ViewMeeting?id=2436&doctype=3) and the Council meeting webpage (https://meetings.cob.org/)). Council meetings also are rebroadcast on BTV (https://cob.org/services/education/btv) on Comcast cable channel 321 (HD) and 10 (SD) Tuesdays at 7 p.m., Wednesdays at 8 a.m., and Saturdays at 7 p.m.

(https://support.google.com/youtube/answer/9891785?hl=en)